

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1360

By: Hasenbeck

AS INTRODUCED

An Act relating to protection from domestic abuse; amending 26 O.S. 2021, Section 4-115.2, as amended by Section 2, Chapter 147, O.S.L. 2023 (26 O.S. Supp. 2024, Section 4-115.2), which relates to confidentiality of residence and mailing address; modifying applicable classes to include victims of sexual assault or abuse, stalking, or human trafficking who provide independent documentary evidence; granting the State Election Board authority to develop guidelines; amending 68 O.S. 2021, Section 2899.1, which relates to requests to keep personal information confidential; permitting the Director of the Oklahoma Attorney General's Address Confidentiality Program to request that certain information not be made publicly available; permitting certain officials to obtain court order to keep certain records confidential; providing definition; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 26 O.S. 2021, Section 4-115.2, as amended by Section 2, Chapter 147, O.S.L. 2023 (26 O.S. Supp. 2024, Section 4-115.2), is amended to read as follows:

Section 4-115.2. A. 1. The Secretary of the State Election Board is authorized to promulgate rules to keep confidential the

1 residence and mailing address, upon application to do so, of
2 individual registered voters who are members of certain classes as
3 described in paragraph 2 of this subsection.

4 2. Classes shall be limited to the judiciary, district
5 attorneys, assistant district attorneys, Uniformed Services members,
6 law enforcement personnel and the immediate family of law
7 enforcement personnel, correctional officers, the secretary,
8 assistant secretary, employees, and members of a county election
9 board or the State Election Board, persons who are protected by
10 victim's protection orders, the spouses and dependents of the
11 members of such classes, and persons who are certified by the
12 Secretary of State as participants in the Address Confidentiality
13 Program established by Section 60.14 of Title 22 of the Oklahoma
14 Statutes. The State Election Board shall also accept applications
15 from persons who provide independent documentary evidence to show
16 that the applicant, the applicant's child, or another person in the
17 applicant's household is a victim of sexual assault or abuse,
18 stalking, or human trafficking to qualify for confidentiality of
19 records under this section. The State Election Board shall have the
20 authority to develop guidelines for accepting or rejecting
21 applications that use independent documentary evidence.

22 3. Such address information shall be provided to a candidate or
23 candidate representative or other lawful authority in anticipation
24 or as part of a contest of candidacy or contest of an election as

1 provided for in this title or as part of a petition challenge as
2 provided by law. However, no information concerning the address of
3 a certified Address Confidentiality Program participant shall be
4 released by election officials to any person for any purpose except
5 under court order.

6 B. As used in this section, "immediate family of law
7 enforcement personnel" means a spouse, child by birth or adoption,
8 stepchild or parent living at the same residence as the law
9 enforcement personnel.

10 SECTION 2. AMENDATORY 68 O.S. 2021, Section 2899.1, is
11 amended to read as follows:

12 Section 2899.1. A. All elected county officials, peace
13 officers and law enforcement organizations in the State of Oklahoma
14 shall be permitted to request to a county assessor that personal
15 information regarding elected county officials, peace officers or
16 undercover or covert law enforcement officers not be made publicly
17 available on the Internet, but instead kept in a secure location at
18 the office of the county assessor where it may be made available to
19 authorized persons pursuant to law. The Director of the Oklahoma
20 Attorney General's Address Confidentiality Program, administered
21 under Section 60.14 of Title 22 of the Oklahoma Statutes, shall be
22 permitted to request to a county assessor that personal information
23 regarding a certified Address Confidentiality Program participant,
24 upon the participant's proof of certification, not be made publicly

1 available on the Internet, but instead kept in a secure location at
2 the office of the county assessor where it may be made available to
3 authorized persons pursuant to law.

4 B. Any elected county official, peace officer ~~or~~, law
5 enforcement official on behalf of an undercover or covert officer,
6 or Address Confidentiality Program participant who wishes to have
7 the personal information of the elected county official, peace
8 officer ~~or~~, undercover or covert officer, or Address Confidentiality
9 Program participant that is contained in the records of a county
10 assessor be kept confidential must obtain an order of a court that
11 requires the county assessor to maintain the personal information of
12 the person or entity in a confidential manner. Such an order must
13 be based on a sworn affidavit by the elected county official, peace
14 officer ~~or~~, law enforcement official, or current Address
15 Confidentiality Program participant which affidavit:

16 1. States that the individual whose information is to be kept
17 confidential is:

- 18 a. an elected county official,
19 b. a peace officer, ~~or~~
20 c. an undercover or covert officer; ~~and~~, or
21 d. a current Address Confidentiality Program participant;
22 and

23 2. Sets forth sufficient justification for the request for
24 confidentiality.

1 C. Upon receipt of such an order, a county assessor shall keep
2 such information confidential and shall not disclose the
3 confidential information to anyone not specifically authorized by
4 law to view the information, unless disclosure is specifically
5 authorized in writing by that person or the affiant. A county
6 assessor shall not post such confidential information on the
7 Internet.

8 D. As used in this section:

9 1. "Elected county official" means a person elected to a county
10 office;

11 2. "Peace officer" shall have the same meaning as that term is
12 defined in Section 99 of Title 21 of the Oklahoma Statutes; ~~and~~

13 3. "Program participant" shall have the same meaning as that
14 term is defined in Section 60.14 of Title 22 of the Oklahoma
15 Statutes; and

16 4. "Personal information" means:

- 17 a. the home address of a person,
- 18 b. the home address of the spouse, domestic partner or
19 minor child of a person, and
- 20 c. any telephone number or electronic mail address of a
21 person.

22 SECTION 3. This act shall become effective July 1, 2025.

23 SECTION 4. It being immediately necessary for the preservation
24 of the public peace, health or safety, an emergency is hereby

1 declared to exist, by reason whereof this act shall take effect and
2 be in full force from and after its passage and approval.

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